

STATE OF NEW YORK

5605--A

2025-2026 Regular Sessions

IN SENATE

February 25, 2025

Introduced by Sen. KAVANAGH -- read twice and ordered printed, and when printed to be committed to the Committee on Consumer Protection -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general business law, in relation to requiring washing machines to meet certain filtration system requirements

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. This act shall be known and may be cited as the "washing
2 machine microfiber filter act".

3 § 2. The general business law is amended by adding a new section 396-
4 uu to read as follows:

5 § 396-uu. Sale of washing machines. 1. Definitions. As used in this
6 section, the following terms shall have the following meanings:

7 a. "Microfiber filtration system" means a filtration unit that is
8 active across all washing cycles and meets either of the following:

9 (i) the unit is integrated into the washing machine design as a built-
10 in filter; or

11 (ii) the unit is included as an in-line filter and is packaged, sold,
12 and installed with the washing machine; and

13 b. "Washing machine" means a machine designed and used for washing
14 clothes and linen.

15 2. a. On and after January first, two thousand twenty-six, all new
16 washing machines offered for sale in the state shall contain a built-in
17 or in-line microfiber filtration system with a mesh size of not greater
18 than one hundred micrometers.

19 b. All washing machines sold in the state on or after January first,
20 two thousand twenty-six shall bear a conspicuous label that is visible
21 to the consumer, in the form of a sticker or any other label type, that
22 includes the following statement: "Notice: This washing machine contains

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 a filter to capture microfibers. Check the filter regularly and dispose
2 of captured lint in a waste bin."

3 3. a. A manufacturer of a washing machine that is subject to the
4 requirements of subdivision two of this section shall provide each
5 person that offers such washing machine for sale or distribution in the
6 state with a certificate of compliance stating that the washing machine
7 is in compliance with the requirements of this section and contains a
8 microfiber filtration system. A certificate of compliance provided
9 pursuant to this subdivision shall be signed by an authorized official
10 of the manufacturer. The certificate of compliance may be provided elec-
11 tronically.

12 b. A distributor or retailer of a washing machine that is subject to
13 the requirements of this section shall not be held in violation of this
14 section if the distributor or retailer is not also the manufacturer of
15 the washing machine and relied in good faith on the certificate of
16 compliance provided by the manufacturer pursuant to paragraph a of this
17 subdivision.

18 4. Upon an action brought by the attorney general, a city attorney, a
19 county counsel, or a district attorney, a person or entity that violates
20 this section shall be liable for a civil penalty not to exceed ten thou-
21 sand dollars for the first violation, and not to exceed thirty thousand
22 dollars for each subsequent violation.

23 § 3. This act shall take effect immediately.